29.01.2020

Present : Sh. Amit Kumar, Ld. counsel for DH.

None for JD.

Ld. Counsel for the DH states that JD Warrants of attachment issued however JD has left the address as mentioned in the petition and requested that they will furnish fresh address of the JD and needs some time to furnish the same and requested that matter adjourned sine die with liberty to revive the same.

In view of the submission of Ld. Counsel for DH, the present execution petition is sine die with liberty to revive the same in accordance with law, if needs arises.

File be consigned to record room.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

CS DJ no.449 of 19
CHOUDHARY TRAVEL AGENCY Vs. MOHD. AKRAM

29.01.2020
Present : Sh. S.K. Shukla, Ld. counsel for plaintiff.

Ld. Counsel for the plaintiff states that plaintiff could not trace out fresh address of the defendant and requested that some time may kindly be granted to trace out the fresh address of the defendant and order may be passed.

Heard.

I have perused the record. On the last date of hearing, steps have not been taken by the plaintiff and today also time sought by counsel for the plaintiff to trace the transfer fresh address of the defendant.

In view of the above, the present matter is adjourned sine die however liberty is granted as and when fresh address of the defendant traced out or needs arises to revive the suit in accordance with law, if needs arise.

File be consigned to record room.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

CS (COMM) no.713 of 19
PREMIER PIGMENTS CHEMICALS
Vs. JAGANNATH PAINTS AND ORS

29.01.2020

Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. Pankaj Nanda, Ld. counsel for plaintiff.
Ms. Ananya Nayyer, Ld. counsel for defendant.

Ld. Counsel for the plaintiff has moved an application u/o 6 Rule 17 CPC for amendment of the suit. Ld. Counsel for the defendant states that copy of earlier plaint has not been supplied to her. Ld. Counsel for plaintiff is directed to supply copy of amended plaint along with copy of application u/o 6 rule 17 CPC moved on behalf of the plaintiff to counsel for the defendant at least 15 days prior to next date of hearing.

In the meantime, Ld. Counsel for the plaintiff states that Ld. Predecessor has passed an order on 16.11.2019 and defendant restrained for selling the suit property till the disposal of the suit.

Now to come up for appearance on behalf of the parties, consideration on the abovesaid application and further proceedings on **30.04.2020.** Interim order passed by Ld. Predecessor to continue till the next date of hearing.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : Sh. S.S. Khatri, Ld. counsel for plaintiff.
Son of the defendant.

Ld. Counsel for the plaintiff states that earlier defendant no. 2 i.e. NDPL was made a party but the same may be deleted from the array of parties however he wants to delete defendant no. 2 from the array of parties and will file the amended memo of parties.

Heard.

At request of counsel for the plaintiff, defendant no. 2 is deleted from the array of parties and directed to file amended memo of parties on the next date.

In the meantime, WS has been filed on behalf of the defendant no.1. Copy supplied.

Now to come up for appearance on behalf of the parties and consideration on the interim application on **24.02.2020.**

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : Sh. S.S. Khatri, Ld. counsel for plaintiff.

Son of the defendant.

Ld. Counsel for the plaintiff states that earlier defendant no. 2 i.e. NDPL was made a party but the same may be deleted from the array of parties however he wants to delete defendant no. 2 from the array of parties and will file the amended memo of parties.

Heard.

At request of counsel for the plaintiff, defendant no. 2 is deleted from the array of parties and directed to file amended memo of parties on the next date.

In the meantime, WS has been filed on behalf of the defendant no.1. Copy supplied.

Now to come up for appearance on behalf of the parties and consideration on the interim application on **24.02.2020.**

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. S.S. Khatri, Ld. counsel for plaintiff.

Son of the defendant.

Ld. Counsel for the plaintiff states that earlier defendant no. 2 i.e. NDPL was made a party but the same may be deleted from the array of parties however he wants to delete defendant no. 2 from the array of parties and will file the amended memo of parties.

Heard.

At request of counsel for the plaintiff, defendant no. 2 is deleted from the array of parties and directed to file amended memo of parties on the next date.

In the meantime, WS has been filed on behalf of the defendant no.1. Copy supplied.

Now to come up for appearance on behalf of the parties and consideration on the interim application on **24.02.2020.**

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : Plaintiff in person.
Sh. Manish Gupta, Ld. Counsel for defendant.

Plaintiff has filed evidence by way of affidavit of PW1 and stated that his counsel is not available today and requested for adjournment.

Plaintiff is directed to supply copy of evidence by way of affidavit of PW1 along with other witnesses to opposite party at least 15 days before next date.

Now to come up for appearance on behalf of the parties and PE on **06.06.2020.**

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : Sh. Bharat Kumar, Ld. counsel for plaintiff.
Defendant is exparte.

Ld. Counsel for the plaintiff states that the matter was fixed for exparte evidence. In this matter an application u/o 12 Rule 6 was moved which was allowed by Ld. Predecessor of this court vide order dated 26.10.18 and decree for possession was granted and the defendant had already handed over the possession of the suit property to the plaintiff and after that defendant stopped to appear before the court and he was proceeded exparte and the matter was fixed for exparte evidence with regard to the damages and after that plaintiff has also not contacted for leading evidence.

I have perused the record. This matter was filed way back in 2012 before Hon'ble High Court and subsequently transferred to the District Court and the decree was passed for possession u/o 12 Rule 6 on 26.10.2018 and since then matter is pending for evidence with regard to the damages as claimed by the plaintiff. It appears that plaintiff is not interested for pursuing the matter further and therefore no steps were taken by him. No further opportunity can be granted to the plaintiff. The suit is dismissed for non-prosecution with regard to the damages, however liberty is granted to revive the suit in accordance with law, if needs arise. Suit stands disposed of accordingly.

File be consigned to record room.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. Satender Kumar, Ld. counsel for plaintiff.
Sh. J.K. Singh and Sh. Kapil Singhal, Ld. counsel for defendant.

Ld. Counsel for the plaintiff states that defendants were proceeded exparte vide order dated 22.08.2019 and Ld. Counsel for the defendants have moved an application u/o 9 Rule 7 and same may be allowed subject to cost.

Heard.

In view of the submissions made by counsel for the plaintiff and considering the facts mentioned in the application u/o 9 Rule 7 CPC, the application is allowed subject to cost of Rs. 3000/- from which Rs. 1500/- to be deposited with DLSA, Central THC, Delhi and Rs. 1500/- to be paid to opposite party. Accordingly, application u/o 9 Rule 7 CPC stands disposed off.

Ld. Counsel for the plaintiff is directed to supply copy of the plaint along with documents to opposite party.

Now to come up for appearance, filing WS and reply on **28.05.2020.** Date has been given as per convenience of parties.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : Ms. Rifat Khan, proxy counsel for plaintiff.
Defendant in person.

Proxy counsel for the plaintiff states that in this matter evidence was led on behalf of the parties and subsequently matter was fixed for final arguments, however an application has been moved by the defendant to recall the order passed by the ld. Predecessor and same is pending for consideration which is delayed the court proceedings and application may be allowed subject to heavy cost.

Since the counsel for the parties are not available today, however in the interest of justice, one last and final opportunity is granted to argue the abovesaid application.

Now to come up for appearance on behalf of the parties and consideration on the abovesaid application on **01.04.2020.**

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Appeal has been received by of transfer vide order no. 60/DHC/Gaz/G-1/VI.E.2(a)/2019 dated 05.11.2019 and 63/DHC/Gaz/G-1/VI.E.2(a)/2019 of Hon'ble High Court of Delhi dated.

Present : Sh. Bharat Deepak, Ld. counsel for appellant.
Sh. Arnav Sindhal, Ld. counsel for respondent.

Ld. Counsel for the appellant states that the present appeal is against the impugned order wherein the suit of the appellant/plaintiff was dismissed by Ld. Trial court and requested that matter may kindly be fixed for arguments.

At request, matter is adjourned today.

Now to come up for appearance on behalf of the parties and arguments on the appeal on **11.05.2020.** Date has been given as per convenience of parties.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. M.S. Panwar along with Sh. Pankaj Gupta, Ld. counsel for appellant.
Sh. S.B. Sharma, Ld. counsel for respondent.

Ld. Counsel for respondent has filed vakalatnama and requested for adjournment to file reply of the appeal. Ld. Counsel for the appellant states that this is an appeal against the impugned order dated 17.09.2019 wherein application u/o 9 Rule 13 CPC was dismissed by the Ld. Predecessor.

Now to come up for filing of reply and consideration on the appeal on **16.05.2020.** Date has been given as per convenience of parties.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020

Present : Sh. , Ld. counsel for plaintiff.

Sh. , Ld. counsel for defendant.

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020

29.01.2020
Present : None for the plaintiff.
Defendant is exparte.

None has appeared on behalf of the plaintiff. I have perused the record. On the last date of hearing, matter was fixed for exparte final arguments by the Ld. Predecessor. Ld. Counsel for plaintiff is directed to come prepare for final arguments.

Now to come up for final arguments on **22.03.2020.**

(Sunil Rana)
Addl. District Judge (Central)
Tis Hazari Courts/29.01.2020